

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Squad #04	CCRB Case #: 202002110	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/01/2020 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/18/2022	Precinct: 61		
Date/Time CV Reported Fri, 03/13/2020 11:22 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/13/2020 11:22 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Szczecinski	05475	940784	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Anthony Carreira	03150	938172	061 DET
2. POM Yiwen Li	13178	956846	061 PCT
3. POF Karina Arutyunyan	04798	965656	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Szczecinski	Abuse: Sergeant Michael Szczecinski threatened to arrest § 87(2)(b)	A . Exonerated
B . SGT Michael Szczecinski	Abuse: Sergeant Michael Szczecinski threatened to arrest § 87(2)(b)	B . Exonerated

Case Summary

On March 13, 2020, § 87(2)(b) (wife of § 87(2)(b) and mother of § 87(2)(b) called the CCRB and filed this complaint.

On February 1, 2020, at approximately 3:00 p.m., Sergeant Michael Szczecinski of the 61st Precinct responded to § 87(2)(b) in Brooklyn regarding a landlord tenant dispute. Sgt. Szczecinski told § 87(2)(b) and § 87(2)(b) that they would be “locked up” if they did not produce a key (**Allegation A: Abuse of Authority, § 87(2)(g)** (**Allegation B: Abuse of Authority, § 87(2)(g)**

No arrests were made, nor any summons issued as a result of this incident.

There is no video evidence regarding this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Michael Szczecinski threatened to arrest § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Michael Szczecinski threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 01) testified he and his wife, § 87(2)(b) own § 87(2)(b) and have rented it out for the past three years to a tenant who died in January of 2020. The § 87(2)(b) s learned of his death three weeks later when the tenant’s brother reached out to collect his belongings. On the day of the incident, § 87(2)(b) went to the location with his son, § 87(2)(b) and his nephew, § 87(2)(b) to assist with removing the tenant’s belongings. An individual, § 87(2)(b) was trying get into the house and was claiming squatters’ rights. § 87(2)(b) and § 87(2)(b) called 911. Sgt. Szczecinski and additional officers responded. § 87(2)(b) explained that he owned the property and did not know who § 87(2)(b) was or why he was claiming squatters’ rights. Sgt. Szczecinski told § 87(2)(b) that § 87(2)(b) had the right to live there and that § 87(2)(b) needed to provide him with a key. § 87(2)(b) told Sgt. Szczecinski he was wrong. Sgt. Szczecinski told § 87(2)(b) that if he did not provide § 87(2)(b) with a key he would be locked up. § 87(2)(b) approached and told Sgt. Szczecinski that they would not give § 87(2)(b) a key. Sgt. Szczecinski told § 87(2)(b) that he and § 87(2)(b) would be locked up if they did not produce a key.

§ 87(2)(b) provided a phone statement to the investigation (Board Review 02) § 87(2)(g) § 87(2)(b) declined to provide a verified statement.

§ 87(2)(b) (Board Review 03) testified that Sgt. Szczecinski told § 87(2)(b) and § 87(2)(b) they would be arrested if they did not give the key to § 87(2)(b)

Sgt. Szczecinski (Board Review 04) testified that he was called to the scene to assist officers in a landlord/tenant dispute. Sgt. Szczecinski was informed, he could not recall by whom, that the original tenant had sublet his space to § 87(2)(b) The original tenant passed away the month prior and the § 87(2)(b) s wanted § 87(2)(b) to leave the property. Sgt. Szczecinski attempted to explain to § 87(2)(b) and § 87(2)(b) their options regarding a landlord/tenant issue. § 87(2)(b) and § 87(2)(b) insisted that they were going to throw § 87(2)(b) out and change the locks once the officers left. Sgt. Szczecinski advised § 87(2)(b) and § 87(2)(b) that if they did that,

they could be arrested for illegal eviction. Sgt. Szczecinski denied telling § 87(2)(b) and § 87(2)(b) that they would be “locked up.”

NYPD Patrol Guide Procedure 214-12 states that when a uniformed member of the service has probable cause to believe that a person has been unlawfully evicted from his dwelling unit, he may effect an arrest where the violator refuses to permit occupant to re-enter or who through physical obstruction prevents the occupant from re-entering (Board Review 05).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 06).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 07).
- Sgt. Szczecinski has been a member-of-service for 15 years and has been named a subject in nine CCRB complaints and 17 allegations, one of which was substantiated.
 - 201704581 involved a substantiated allegation of a refusal to process civilian complaint. The Board recommended Command Discipline A and the NYPD imposed Instructions.

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 5, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 10).

Squad No.: 4

Investigator:	<u>Charis Jones</u>	<u>Inv. Charis Jones</u>	<u>02/03/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>02/03/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date